

7.35.3 NMAC: proposed amendments to the training and education provisions

Version {VERSION}, {VERSION_DATE}. A side-by-side working draft, prepared against the proposed rule published July 23, 2026.

Rule hearing set for August 28, 2026. Version history is at the end.

What this is, and what it is not. This is a working draft for review. Nothing in it is definitive, nothing has been filed, and nothing has been adopted. It is offered so that counsel and the committee can work from specific proposed language rather than from a list of concerns, and can see, provision by provision, exactly what would change and exactly what would not.

What has been done to it. Every word in the left column has been checked against the text layer of the published rule and matches it exactly; the document does not build if any block fails that check. Every proposed change traces to the rule as published, to the July 17, 2026 recommendations, or to what was said on the record at the two July 17, 2026 meetings. The reasoning and the citation for each one sit in the accompanying files, which are named at the end.

What it deliberately leaves alone. It covers the practicum and the provisions the practicum cannot function without. It is not a review of the whole of Part 3, and it is not a filing. Where a fix would require changing something outside that scope, the point is flagged and the language is not drafted.

How to read the columns. The left column is the rule as published, verbatim, with line breaks introduced by the PDF collapsed to single spaces and no other alteration. The right column is the proposed amendment: underlined bold green is inserted, ~~struck red is deleted~~, and unmarked text is carried forward unchanged. Where a section has subsections that are not being amended, they are named and marked so the extent of what is and is not touched is visible on the page.

Permit title. The draft keeps “practitioner.” It does not adopt “licensed provider.” The title is held as a variable in the source and substituted here, so that if the committee changes it, it changes everywhere in one pass. The term is defined in 7.35.2.7 NMAC, a different part, which 7.35.3.7 NMAC incorporates by reference, so a retitling is an amendment to that part as well.

Section numbering. The published headings for 7.35.3.14 and 7.35.3.20 read 7.34.3.14 and 7.34.3.20, which point at a different chapter of Title 7, while the bracketed history note at the end of each of those sections reads 7.35.3. Three further headings carry the same error. The corrections are shown in the right column.

Proposed new provisions. Four provisions in this document do not exist in the rule as published: 7.35.3.14 D, 7.35.3.19 D, F, H, I and J, 7.35.3.20 M, and the whole of 7.35.3.29. Each is introduced where it appears. 7.35.3.29 in particular is drafted with an express contingency and should be read with the note above it.

The hours, at a glance. Hours shift. They do not shrink. Total program hours rise for both permit types. The 84-hour standard is inclusive of the 5-hour simulated patient experience.

Component	As published July 23	Proposed	Change
Didactic hours	35, plus a New Mexico module with no hour count	79	+44
Simulated patient experience	5	5	0
Module total, either permit	40, plus an unpriced module	84	+44
Practicum, facilitator	100	80	-20
Practicum, practitioner	120, or 140 on the second reading of 7.35.3.19 C	90	-30
Supervision or consultation	10	20	+10
Program total, facilitator	150	184	+34
Program total, practitioner	170, or 190	194	+24

Every patient and session minimum in the published practicum is carried forward unchanged: 14 different patients, eight different administration day sessions, six individual sessions with six different patients, two group sessions with four or more patients each, and 20 hours of preparation and integration sessions. Only hours move.

7.35.3.14 Authorized possession, purchase, or sale of medical psilocybin

This section is the one that grants authority to hold and hand over the medicine. Everything the practicum asks a student to do depends on it. The amendments add a fourth class of person, the training permittee, and repair a condition in Subsection C that cannot currently be satisfied.

CURRENT LANGUAGE

Proposed rule as published July 23, 2026

PROPOSED AMENDMENT

Draft for review. Not filed, not adopted

Section heading and lead-in

7.34.3.14 AUTHORIZED POSSESSION, PURCHASE, OR SALE OF MEDICAL PSILOCYBIN BY PRACTITIONERS, FACILITATORS, HEALING CENTER OWNERS AND EMPLOYEES: Certification of a practitioner, facilitator, or healing center shall enable practitioners, facilitators, and owners and employees of healing centers to do the following, in accordance with medical psilocybin program rules:

Section heading and lead-in

~~7.34.3.14~~ **7.35.3.14** AUTHORIZED POSSESSION, PURCHASE, OR SALE OF MEDICAL PSILOCYBIN BY PRACTITIONERS, FACILITATORS, **TRAINING PERMITTEES**, HEALING CENTER OWNERS AND EMPLOYEES: Certification of a practitioner, facilitator, or healing center, **and issuance of a training permit under Subsection H of 7.35.3.19 NMAC**, shall enable practitioners, facilitators, **training permittees**, and owners and employees of healing centers to do the following, in accordance with medical psilocybin program rules:

Subsection A, Practitioners (A) Practitioners: Practitioners may purchase and possess medical psilocybin products obtained from permitted producers, and may sell or otherwise provide medical psilocybin products to qualified patients during administration sessions conducted at a healing center location or other approved location. A practitioner may only sell or otherwise provide psilocybin products that are obtained from permitted producers.	Subsection A, Practitioners (A) <u>A.</u> Practitioners: Practitioners may purchase and possess medical psilocybin products obtained from permitted producers, and may sell or otherwise provide medical psilocybin products to qualified patients, <u>or to practicum participants in accordance with 7.35.3.29 NMAC</u>, during administration sessions conducted at a healing center location or other approved location. A practitioner may only sell or otherwise provide psilocybin products that are obtained from permitted producers.
Subsection B, Facilitators (B) Facilitators: Facilitators may possess medical psilocybin products, for the purpose of providing those products to qualified patients in administration sessions conducted at healing centers and other approved locations.	Subsection B, Facilitators (B) <u>B.</u> Facilitators: Facilitators may possess medical psilocybin products, for the purpose of providing those products to qualified patients, <u>or to practicum participants in accordance with 7.35.3.29 NMAC</u>, in administration sessions conducted at healing centers and other approved locations.
Subsection C, Healing centers (C) Healing centers: Owners and employees of healing centers who are registered with the department may purchase medical psilocybin products from permitted producers, may possess medical psilocybin products, and may sell or otherwise administer those products to qualified patients in administration sessions conducted at the healing center or other approved locations, provided that such individuals are also designated to engage in each activity by the healing center. A healing center may only sell or otherwise provide psilocybin products that are obtained from permitted producers.	Subsection C, Healing centers (C) <u>C.</u> Healing centers: Owners and employees of healing centers who are registered with the department <u>designated to the department by the healing center in accordance with Subsection M of 7.35.3.20 NMAC</u> may purchase medical psilocybin products from permitted producers, may possess medical psilocybin products, and may sell or otherwise administer those products to qualified patients in administration sessions conducted at the healing center or other approved locations, provided that such individuals are also designated to engage in each activity by the healing center. A healing center may only sell or otherwise provide psilocybin products that are obtained from permitted producers.
Subsection D, Training permittees <i>There is no current language. This provision does not exist in the proposed rule as published.</i>	Subsection D, Training permittees <u>D. Training permittees: A student who holds a current training permit issued under Subsection H of 7.35.3.19 NMAC may possess medical psilocybin products, and may administer or otherwise provide those products to qualified patients, or to practicum participants in accordance with 7.35.3.29 NMAC, in administration sessions conducted at a healing center or other approved location, in each case only while under the direct, on-site supervision of a practicum supervisor registered under Subsection F of 7.35.3.19 NMAC, and only to the extent required by the practicum under 7.35.3.19 NMAC. A training permittee shall not purchase medical psilocybin products.</u>

7.35.3.18 Educational requirements for certifying clinicians, practitioners, and facilitators

The educational requirements. The amendments set a single binding standard of 84 module hours for both permit types, give the New Mexico module an hour count and a delivery date it currently lacks, and add the content areas that were requested on the record on July 17 and did not appear in the rule as published.

CURRENT LANGUAGE

Proposed rule as published July 23, 2026

PROPOSED AMENDMENT

Draft for review. Not filed, not adopted

Subsection A, New Mexico educational module

A. Requirements for certifying clinician, practitioner, and facilitator certification: All certifying clinicians, practitioners, and facilitators who provide medical psilocybin services, including all such providers who are certified by the department on the basis of having completed an educational program from another jurisdiction, shall complete a New Mexico educational module created or approved by the department prior to applying for certification, which shall include at a minimum:

Subsection A, New Mexico educational module

A. Requirements for certifying clinician, practitioner, and facilitator certification: All certifying clinicians, practitioners, and facilitators who provide medical psilocybin services, including all such providers who are certified by the department on the basis of having completed an educational program from another jurisdiction, shall complete a New Mexico educational module created or approved by the department, consisting of a minimum of eight didactic hours, prior to applying for certification, which shall include at a minimum: *Paragraphs (1) through (5) not amended.*

Subsection B, certifying clinician module

Not amended.

Subsection B, certifying clinician module

Not amended.

Subsection C, practitioner and facilitator psilocybin therapy module, lead-in

C. Requirements for initial practitioner and facilitator certification: All practitioners and facilitators shall complete a psilocybin therapy module consisting of a minimum of 30 didactic hours and 5 hours of simulated patient experience, prior to applying for certification, which shall include:

Subsection C, practitioner and facilitator psilocybin therapy module, lead-in

C. Requirements for initial practitioner and facilitator certification: All practitioners and facilitators shall complete a psilocybin therapy module consisting of a minimum of ~~30~~ 65 didactic hours and 5 hours of simulated patient experience, prior to applying for certification, which shall include:

Subsection C, required topics (1) Overview of practitioner/facilitator responsibilities including how to work as part of a care team; (2) 42 CFR part 2; (3) Trauma-Informed Care (4) Psychedelic emergencies/urgencies/medical monitoring; (5) Psilocybin actions, interactions and pharmacology; (6) Set and setting; (7) Ethics in therapeutic settings; (8) Patient-centered approaches and care; (9) Preparation and integration sessions; (10) Administration session; (11) Dosing; (12) Psychedelic de-escalation techniques; (13) Non-ordinary states of consciousness; (14) Self-care; (15) Research and data collection requirements; (16) A simulated patient experience of no less than 5 hours; and (17) Evaluation to demonstrate competency in the above areas.	Subsection C, required topics (1) Overview of practitioner/facilitator responsibilities including how to work as part of a care team; (2) 42 CFR part 2; (3) Trauma-Informed Care, <u>a minimum of eight didactic hours;</u> (4) Psychedelic emergencies/urgencies/medical monitoring; (5) Psilocybin actions, interactions and pharmacology; (6) Set and setting; (7) Ethics in therapeutic settings, <u>a minimum of 14 didactic hours;</u> (8) Patient-centered approaches and care; (9) Preparation and integration sessions; (10) Administration session; (11) Dosing; (12) Psychedelic de-escalation techniques, <u>and recognition of and support for challenging experiences during and after administration sessions, including hallucinogen persisting perception disorder;</u> (13) Non-ordinary states of consciousness; (14) Self-care; (15) Research and data collection requirements; <u>(16) End-of-life and palliative care, a minimum of 10 didactic hours;</u> <u>(17) Screening, suicidality, and crisis response, a minimum of five didactic hours;</u> <u>(18) Substance use disorder, including nicotine use disorder, a minimum of four didactic hours;</u> <u>(19) Post-traumatic stress disorder: recognition, screening, contraindications, and collaboration with or referral to a provider trained in the treatment of post-traumatic stress disorder, a minimum of four didactic hours. This paragraph does not require training in the treatment of post-traumatic stress disorder;</u> <u>(20) Somatic awareness and therapeutic touch, including consent, a minimum of four didactic hours;</u> <u>(21) History and traditional use of psilocybin and other psychedelics, a minimum of three didactic hours;</u> <u>(22) Individual and group treatment models and group dynamics;</u> (16) <u>(23)</u> A simulated patient experience of no less than 5 hours; and (17) <u>(24)</u> Evaluation to demonstrate competency in the above areas.
Subsection D, additional facilitator module, lead-in D. Additional requirements for initial facilitator certification: All facilitators shall complete a facilitator-specific training module consisting of a minimum of five didactic hours, prior to applying for certification, which shall include:	Subsection D, additional facilitator module, lead-in D. Additional requirements for initial facilitator certification: All facilitators shall complete a facilitator-specific training module consisting of a minimum of five <u>six</u> didactic hours, prior to applying for certification, which shall include: <i>Paragraphs (1) through (5) not amended.</i>

Subsection E, additional practitioner module, lead-in E. Additional requirements for initial practitioner certification: All practitioners shall complete a module on psychedelic and psilocybin therapeutic approaches consisting of a minimum of five didactic hours, prior to applying for certification, which shall include:	Subsection E, additional practitioner module, lead-in E. Additional requirements for initial practitioner certification: All practitioners shall complete a module on psychedelic and psilocybin therapeutic approaches consisting of a minimum of five six didactic hours, prior to applying for certification, which shall include: <i>Paragraphs (1) through (3) not amended.</i>
Subsection F, practitioner and facilitator trainings, lead-in F. Practitioner and facilitator trainings: All practitioners and facilitators shall also complete and maintain proof of current certification prior to applying for medical psilocybin certification in:	Subsection F, practitioner and facilitator trainings, lead-in F. Practitioner and facilitator trainings: All practitioners and facilitators shall also complete and maintain proof of current certification prior to applying for medical psilocybin certification in: <u>complete and maintain the following prior to applying for medical psilocybin certification:</u> <i>Paragraphs (1) and (2) not amended. This corrects a sentence that does not complete as published; no obligation changes.</i>
Subsection G, continuing education <i>Not amended.</i>	Subsection G, continuing education <i>Not amended.</i>
Subsection H, total module hours <i>There is no current language. This provision does not exist in the proposed rule as published.</i>	Subsection H, total module hours <u>H. Total module hours: The requirements of Subsections A, C and D of this section shall together total a minimum of 84 hours for a facilitator applicant. The requirements of Subsections A, C and E of this section shall together total a minimum of 84 hours for a practitioner applicant. Of that total, no fewer than 79 hours shall be didactic hours, and 5 hours shall be the simulated patient experience required by Subsection C of this section, which is in addition to the didactic hours required by that subsection. The hour minimums stated for individual content areas within Subsection C are floors within the 84-hour total and do not limit an educational program's allocation of the balance of the hours.</u>
Subsection I, New Mexico educational module; availability <i>There is no current language. This provision does not exist in the proposed rule as published.</i>	Subsection I, New Mexico educational module; availability <u>I. New Mexico educational module; availability: The department shall create or approve, and shall publish, the New Mexico educational module required by Subsection A of this section no later than 90 calendar days after the effective date of this rule. An applicant who is otherwise qualified for certification shall not be denied certification on the ground that the New Mexico educational module was unavailable, and shall complete the module within 90 calendar days after the department publishes it.</u>

7.35.3.19 Practicum requirements for practitioners and facilitators

The practicum. This is the section the work was commissioned to address, and the other three sections in this document are here because this one depends on them. The amendments move hours out of the practicum and into the classroom and consultation, add a staged sequence, create the training permit that makes the practicum lawful, open practicum placement beyond a student's own program, and put standards on a waiver that currently has none.

CURRENT LANGUAGE

Proposed rule as published July 23, 2026

PROPOSED AMENDMENT

Draft for review. Not filed, not adopted

Subsection A, minimum practicum hours; administration day sessions

A. Minimum practicum hours; administration day sessions: An individual who seeks to become certified as a practitioner or facilitator shall participate in supervised practice training, otherwise referred to as a “practicum”, after completing at least half of the didactic requirements and all of the simulated patient requirements of the educational requirements. The practicum shall consist of a minimum of 100 hours of supervised practice training for facilitators and 120 hours for practitioners and shall be completed prior to applying for certification. Students shall participate in a minimum of 80 hours of administration day sessions, where students are provided the opportunity to experience, observe, or conduct supervised facilitation of administration day sessions in-person with a minimum of 14 different patients over a minimum of eight different administration and same-day sessions with the following criteria:

Subsection A, minimum practicum hours; administration day sessions

A. Minimum practicum hours; administration day sessions: An individual who seeks to become certified as a practitioner or facilitator shall participate in supervised practice training, otherwise referred to as a “practicum”, after completing at least ~~half of the didactic requirements~~ 40 of the didactic hours required by 7.35.3.18 NMAC and all of the simulated patient requirements of the educational requirements. The practicum shall consist of a minimum of ~~100~~ 80 hours of supervised practice training for facilitators and ~~120~~ 90 hours for practitioners and shall be completed prior to applying for certification. Students shall participate in a minimum of ~~80~~ 60 hours of administration day sessions, where students are provided the opportunity to experience, observe, or conduct supervised facilitation of administration day sessions in-person with a minimum of 14 different patients over a minimum of eight different administration ~~and same-day~~ day sessions with the following criteria: *Paragraphs (1) and (2), the patient and session minimums, not amended.*

Subsection B, minimum practicum hours; preparation and integration sessions

B. Minimum practicum hours; in-person and integration sessions: Students shall participate in a minimum of 20 hours of in-person preparation and integration sessions, where students are provided the opportunity to experience, observe, or conduct (when licensure allows) preparation or integration sessions. This shall include a minimum of six different patients during individual sessions. This shall include at least one group preparatory and one group integration session with a minimum of four or more patients.

Subsection B, minimum practicum hours; preparation and integration sessions

B. Minimum practicum hours; in-person and integration sessions: Students shall participate in a minimum of 20 hours of in-person preparation and integration sessions, where students are provided the opportunity to experience, observe, or conduct (when licensure allows) preparation or integration sessions. This shall include a minimum of six different patients during individual sessions. This shall include at least one group preparatory and one group integration session with a minimum of four or more patients. The patients counted under this subsection and the sessions counted under this subsection may be the same patients and the same group cohorts counted under Subsection A of this section.

Subsection C, practitioner supervision hours

C. Practitioner supervision hours: Practitioners shall complete an additional minimum of 20 hours as a practitioner supervising facilitators during in-person administration day sessions, which shall include a minimum of two different patients during individual administration day sessions, and a minimum of one group administration day sessions with a minimum of four or more patients in the group.

Subsection C, practitioner supervision hours

C. Practitioner supervision hours: Practitioners shall complete an additional minimum of ~~20~~ 10 hours as a practitioner supervising facilitators during in-person administration day sessions, which hours are included within the 90 hours required by Subsection A of this section and are additional to the hours required of facilitators, which shall include a minimum of two different patients during individual administration day sessions, and a minimum of one group administration ~~day sessions~~ day session with a minimum of four or more patients in the group.

Subsection D, practicum sequence

There is no current language. This provision does not exist in the proposed rule as published.

Subsection D, practicum sequence

D. Practicum sequence: A student shall complete the 60 hours of administration day sessions required by Subsection A of this section in the following sequence. The hour figures stated in this subsection are minimums within the practicum totals required by Subsection A and do not limit the discretion of a practicum supervisor to assign a student duties of greater responsibility as the student demonstrates proficiency. Hours of preparation and integration sessions are counted under Subsection B of this section and not under this subsection.

(1) Stage one, initial supervised experience: a minimum of 20 hours. Stage one shall be completed with practicum participants who are not qualified patients, in accordance with 7.35.3.29 NMAC. If and for so long as 7.35.3.29 NMAC is not in effect, stage one shall consist of a minimum of 20 hours during which the student observes administration day sessions and provides support to the practitioner or facilitator conducting them, and the student shall not possess or administer medical psilocybin products during stage one. Preparation and integration sessions are required for each participant. Stage one shall be completed before a training permit is issued under Subsection H of this section.

(2) Stage two, co-facilitation: a minimum of 25 hours during which the student, holding a current training permit issued under Subsection H of this section, serves as the second person of a co-facilitation pair with a certified practitioner or facilitator. A practicum supervisor shall assign stage two cases on the basis of the acuity of the patient's presentation and the student's demonstrated proficiency.

(3) Stage three, group practicum: a minimum of 15 hours of direct participation in group administration day sessions.

(4) Stage four applies to practitioner applicants only and consists of the supervision hours required by Subsection C of this section.

Subsection E, practicum location (published Subsection D)

D. Practicum location: All practicum hours shall take place in an approved healing center or other approved location.

Subsection E, practicum location (published Subsection D)

~~D.~~ **E.** Practicum location: All practicum hours shall take place in an approved healing center or other approved location. **A healing center or other approved location may host a practicum student who is not enrolled in an educational program with which the healing center or other approved location is affiliated, provided that the student is supervised by a practicum supervisor approved under Subsection F of this section. A healing center or other approved location that hosts a practicum student shall not be required to hold certification as a psilocybin educational program by reason of hosting the student.**

Subsection F, practicum supervisors <i>There is no current language. This provision does not exist in the proposed rule as published.</i>	Subsection F, practicum supervisors <u>F. Practicum supervisors:</u> <u>(1) A practicum supervisor for a facilitator student shall be a certified practitioner or a certified facilitator. A practicum supervisor for a practitioner student shall be a certified practitioner.</u> <u>(2) A practicum supervisor shall have held the applicable certification for at least one year, or shall have been certified on the basis of an educational program from another jurisdiction under 7.35.3.10 NMAC and have practiced under that jurisdiction's authority for at least one year.</u> <u>(3) A practicum supervisor shall register with the department through the electronic system designated by the department, and shall submit documentation of the requirements of Paragraphs (1) and (2) of this subsection. The department shall act on a registration within 30 calendar days.</u> <u>(4) The department shall maintain and publish a list of registered practicum supervisors and of healing centers and other approved locations available to host practicum students.</u> <u>(5) A practicum supervisor shall provide direct, on-site supervision during any session in which a student possesses or administers medical psilocybin products.</u>
Subsection G, practicum standards (published Subsection E) E. Practicum standards: Practicum supervisors and students shall follow these rules as they apply to facilitation and therapy, shall comply with HIPAA and HITECH confidentiality requirements, and shall comport with applicable limits on scope of practice.	Subsection G, practicum standards (published Subsection E) E. <u>G.</u> Practicum standards: Practicum supervisors and students shall follow these rules as they apply to facilitation and therapy, shall comply with HIPAA and HITECH confidentiality requirements, and shall comport with applicable limits on scope of practice. <i>Re-lettered only. Text not amended.</i>

Subsection H, training permit

There is no current language. This provision does not exist in the proposed rule as published.

Subsection H, training permit

H. Training permit:

- (1) Issuance:** The department shall issue a training permit to an applicant who: (a) is registered as a student with a psilocybin educational program certified under 7.35.3.12 NMAC; (b) has completed the didactic requirement for entry to the practicum stated in Subsection A of this section; (c) has completed stage one of the practicum sequence under Subsection D of this section; (d) submits documentation of current certification or licensure meeting Subsection F of 7.35.3.18 NMAC; (e) submits an attestation that the applicant is not registered in any jurisdiction as a sex offender; and (f) submits the applicant's legal name, address, telephone number, e-mail address, signature, and date of application submittal.
- (2) Decision:** Once the department has received a completed application, it will review the application and render a decision within 30 calendar days. If the department denies an application, the department shall provide notice of the denial within 30 calendar days in accordance with this rule. An applicant whose application is denied may appeal the denial in accordance with this rule.
- (3) Authority conferred:** A training permit authorizes the permittee to possess and administer medical psilocybin products to qualified patients, and to practicum participants in accordance with 7.35.3.29 NMAC, as provided in 7.35.3.14 NMAC, and to conduct supervised facilitation of administration day sessions and supervised preparation and integration sessions as required by this section, in each case only while under the direct, on-site supervision of a practicum supervisor. A training permittee shall not purchase medical psilocybin products, shall not provide medical psilocybin services other than as part of the practicum or the consultation requirement in Subsection I of this section, and shall not hold themselves out as a certified practitioner or facilitator.
- (4) Term:** A training permit is valid for 24 months from the date of issuance and may be renewed once for a further 12 months. A training permit expires on the earlier of the end of its term, the date the permittee ceases to be registered as a student with a certified psilocybin educational program, or the date the department issues the permittee a practitioner or facilitator certification.
- (5) Status:** A training permittee is a certificant for purposes of this rule.

Subsection I, supervision and consultation; case presentation sign-off <i>There is no current language. This provision does not exist in the proposed rule as published.</i>	Subsection I, supervision and consultation; case presentation sign-off <u>I. Supervision and consultation; case presentation sign-off:</u> <u>(1) A training permittee shall complete a minimum of 20 hours of supervision or consultation during the training permit period, in addition to the practicum hours required by this section.</u> <u>(2) Sign-off requires the permittee to present a minimum of two cases of qualified patients with whom the permittee has personally worked in the medical psilocybin program. Each case presentation shall take the form of a biopsychosocial case conceptualization addressing presenting concerns, risk factors, supportive factors, treatment considerations, and recommendations for aftercare.</u> <u>(3) The supervisor or consultant shall complete an evaluation on a form approved by the department for each case presented, and shall submit it through the electronic system designated by the department.</u> <u>(4) The 10 hours of mentoring sessions required by Subsection A of 7.35.3.17 NMAC are credited toward the 20 hours required by this subsection.</u> <u>(5) The requirements of this subsection shall be completed prior to applying for certification.</u>
Subsection J, end-of-life practice <i>There is no current language. This provision does not exist in the proposed rule as published.</i>	Subsection J, end-of-life practice <u>J. End-of-life practice: Before providing medical psilocybin services to a patient enrolled on the basis of end-of-life care other than under the direct supervision of a practitioner or facilitator who meets the requirements of this subsection, a practitioner or facilitator shall have completed at least one co-facilitated end-of-life case during the practicum and presented at least one end-of-life case under Subsection I of this section.</u>
Subsection K, waiver of practicum requirements (published Subsection F) F. Waiver of practicum requirements: The department may otherwise waive, temporarily suspend, or reduce the practicum requirements for individuals applying for certification, in order to facilitate the certification of individuals trained by other government-approved programs, and to build the initial infrastructure of the program.	Subsection K, waiver of practicum requirements (published Subsection F) F. <u>K.</u> Waiver of practicum requirements: The department may otherwise waive, temporarily suspend, or reduce the practicum requirements for individuals applying for certification, in order to facilitate the certification of individuals trained by other government-approved programs, and to build the initial infrastructure of the program. <u>The department shall act on a request under this subsection within 30 calendar days and shall state the basis for its decision in writing. The department shall not under this subsection: (1) reduce an applicant's practicum below 40 hours of contact time with qualified patients; (2) waive the requirements of Subsection I of this section; or (3) authorize any person to possess or administer medical psilocybin products who is not certified or does not hold a current training permit. The department shall publish the number of waivers granted under this subsection and the general grounds for them, at least annually.</u>

Subsection L, waiver for applications received by December 31, 2027 (published Subsection G)

G. Waiver of practicum hours requirement for applications received by December 31, 2027: An applicant for certification shall not be required to satisfy the full New Mexico practicum hours requirement if the applicant:

- (1) Applies for certification by December 31, 2027;
- (2) Completes the didactic requirements by December 31, 2027;
- (3) Graduates from an educational program that the department certifies by December 31, 2027 or that the department has included on the department-approved list of educational programs by December 31, 2027; and
- (4) Demonstrates completion of at least 40 hours of contact time through logs or other records of the sessions, including:
 - (a) A minimum of two separate individual sessions including the appointments for preparation, administration and integration; and
 - (b) A minimum of one group session including the appointments for preparation, administration, and integration.

Subsection L, waiver for applications received by December 31, 2027 (published Subsection G)

~~G.~~ L. Waiver of practicum hours requirement for applications received by December 31, 2027: An applicant for certification shall not be required to satisfy the full New Mexico practicum hours requirement if the applicant:

- (1) Applies for certification by December 31, 2027;
- (2) Completes the didactic requirements by December 31, 2027;
- (3) Graduates from an educational program that the department certifies by December 31, 2027 or that the department has included on the department-approved list of educational programs by December 31, 2027; and
- (4) Demonstrates completion of at least 40 hours of contact time through logs or other records of the sessions, including:
 - (a) A minimum of two separate individual sessions including the appointments for preparation, administration and integration; and
 - (b) A minimum of ~~one group session~~ two separate group sessions including the appointments for preparation, administration, and integration.

7.35.3.20 Requirements for healing centers and other approved locations

Healing centers and other approved locations. Only two provisions are touched: the staffing ratio, because it counts students toward mandatory staffing, and a new subsection creating the designation that 7.35.3.14 C requires and the rule never established.

CURRENT LANGUAGE

Proposed rule as published July 23, 2026

PROPOSED AMENDMENT

Draft for review. Not filed, not adopted

Subsection H(5), staffing ratios

(5) Includes procedures to ensure that there are practitioners and facilitators present at all times during an administration session with a minimum of one practitioner and one facilitator for individual patient sessions; and in group administration sessions a minimum of one practitioner for every eight patients and a minimum of one facilitator or qualified student for every two patients. For purposes of the foregoing provision, a student shall be deemed qualified if they are registered with a certified educational program and they have completed at least 50 hours of their practicum. Exception: the department may waive or decrease this ratio if the department determines that the ratio specified presents a barrier for patients and that safety concerns are otherwise alleviated.

Subsection H(5), staffing ratios

(5) Includes procedures to ensure that there are practitioners and facilitators present at all times during an administration session with a minimum of one practitioner and one facilitator for individual patient sessions; and in group administration sessions a minimum of one practitioner for every eight patients and a minimum of one facilitator or qualified student for every two patients. For purposes of the foregoing provision, a student shall be deemed qualified if they ~~are registered with a certified educational program and they have completed at least 50 hours of their practicum.~~ hold a current training permit issued under Subsection H of 7.35.3.19 NMAC and have completed at least 50 hours of their practicum. Qualified students shall not fill more than half of the facilitator positions required by this paragraph in any administration session, and a session staffed in part by qualified students shall include at least one certified facilitator. Exception: the department may waive or decrease this ratio if the department determines that the ratio specified presents a barrier for patients and that safety concerns are otherwise alleviated.

Subsection M, designation of owners and employees <i>There is no current language. This provision does not exist in the proposed rule as published.</i>	Subsection M, designation of owners and employees <u>M. Designation of owners and employees: A healing center shall submit to the department, through the electronic system designated by the department, a current list of the owners and employees the healing center designates to purchase, possess, sell or administer medical psilocybin products, identifying which of those activities each designated individual is authorized to engage in. A healing center shall update the list within five business days of a change. An individual is designated for purposes of Subsection C of 7.35.3.14 NMAC on submission of the list identifying them.</u>
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7.35.3.29 New section. Supervised practice with practicum participants who are not qualified patients

PROPOSED NEW SECTION. Nothing in the rule as published corresponds to it. It would provide for the first stage of the practicum to be conducted with participants who are not qualified patients, which is step 1 of the July 17 recommendation. It is drafted with an express contingency, because the Medical Psilocybin Act as read for this draft does not extend its criminal and civil exemption to a person who is not a qualified patient, a clinician, or a producer. Read it as the text that would be needed if the Legislature supplies that authority, and as a statement of the ask if it does not.

CURRENT LANGUAGE

Proposed rule as published July 23, 2026

PROPOSED AMENDMENT

Draft for review. Not filed, not adopted

Entire section, supervised practice with practicum participants who are not qualified patients

There is no current language. This provision does not exist in the proposed rule as published.

Entire section, supervised practice with practicum participants who are not qualified patients

7.35.3.29 SUPERVISED PRACTICE WITH PRACTICUM PARTICIPANTS WHO ARE NOT QUALIFIED PATIENTS:

A. Purpose: This section provides for stage one of the practicum sequence required by Subsection D of 7.35.3.19 NMAC to be conducted with practicum participants who are not qualified patients, so that a student gains supervised experience of administration sessions before the student works with qualified patients.

B. Practicum participant: A practicum participant is an individual who: (1) is 21 years of age or older; (2) is not a qualified patient and is not enrolled in the medical psilocybin program; (3) volunteers to take part in a practicum session, pays no fee for the session and receives no compensation for taking part; (4) has been screened for contraindications by a certifying clinician, or by a practitioner acting within the scope of the practitioner's professional license, using criteria approved by the department; and (5) has given written informed consent on a form approved by the department, which shall state that the session is a training session, that the participant is not receiving medical psilocybin services for a qualifying condition, and that the participant may withdraw at any time.

C. Conduct of practicum sessions: A practicum session under this section shall: (1) take place at a healing center or other approved location; (2) be supervised on site by a practicum supervisor registered under Subsection F of 7.35.3.19 NMAC; (3) meet the staffing ratios in Paragraph (5) of Subsection H of 7.35.3.20 NMAC, counting practicum participants as patients for that purpose; (4) include a preparation session and an integration session for each practicum participant; and (5) use only medical psilocybin products obtained from permitted producers.

D. Records and reporting: A healing center or registrant of another approved location shall record practicum sessions in the daily log required by Subsection E of 7.35.3.20 NMAC, and shall report any potential adverse health event arising from a practicum session in accordance with Subsection L of 7.35.3.20 NMAC. An educational program shall record practicum sessions under this section in the records required by Subsection C of 7.35.3.17 NMAC.

E. Limits: A practicum participant shall not be charged for, and shall not purchase, medical psilocybin products. Hours completed under this section count only toward stage one of the practicum sequence and shall not be counted toward the patient and session minimums in Subsections A and B of 7.35.3.19 NMAC.

F. Effect: This section applies only to the extent that the Medical Psilocybin Act, Sections 26-2D-1 through -11 NMSA 1978, authorizes the administration of medical psilocybin to a person who is not a qualified patient. If and for so long as it does not, stage one of the practicum sequence is governed by the second sentence of Paragraph (1) of Subsection D of 7.35.3.19 NMAC.

Addendum A Practicum dependency map

Every provision the practicum depends on, in and out of this document. The practicum is 7.35.3.19. It cannot function without each row below. The Status column says whether this draft touches it.

Provision	Page	What the practicum needs from it	Status in this draft
7.35.2.7 NMAC	n/a	Supplies every defined term used in Part 3, by force of 7.35.3.7. Defines practitioner, guide, clinician, qualified patient, approved location, administration session	Not amended. Defect flagged: facilitator, healing center, certifying clinician and student are used throughout Part 3 and defined nowhere
Medical Psilocybin Act, Section 5	n/a	The criminal and civil exemption. Reaches producers, clinicians and qualified patients, and protects presence only for anyone else	Statute. Cannot be reached by rule
7.35.3.9 C(3)	3	Certification application requires documentation of completed practicum	Not amended
7.35.3.9 E(1)	3	Practitioner licensure predicate. Decides what a practitioner student may do under 7.35.3.19 B "when licensure allows"	Not amended. Flagged
7.35.3.9 E(2), F(1)	3	Both certification lists require documentation of the department-approved practicum	Not amended
7.35.3.10 D	5	Out-of-jurisdiction 40-hour practicum waiver	Not amended. Conflicts with 7.35.3.19 L; conforming amendment flagged
7.35.3.11 A, B	5 to 7	Healing centers and other approved locations. The practicum may only happen in them	Not amended
7.35.3.12 A	7	Educational program certification. A training permit requires registration with a certified program	Not amended
7.35.3.13 B	8	Facilitator scope of work. Limits what a facilitator may do after certification, and so what the practicum can usefully train	Not amended. Flagged
7.35.3.14	9	The authority to possess and administer. Without it no student may lawfully handle the medicine	AMENDED. New Subsection D
7.35.3.15 A(4)	9	Practicum site agreements need prior written departmental approval, with no deadline on the department	Not amended. Flagged
7.35.3.17 A	10 to 11	The 10 mentoring hours, credited toward the consultation requirement	Not amended. Flagged
7.35.3.17 B	11	Test-out. Makes practicum completion a condition of graduation, which may empty the December 31, 2027 waiver	Not amended. Flagged
7.35.3.17 C(2)(d), (e)	11	Records of practicum sessions, dates, locations, patient counts, and supervised facilitators	Not amended
7.35.3.18 A, C, D, E	11 to 12	The didactic requirement the practicum entry gate is measured against	AMENDED
7.35.3.18 F	12	Life support and HIPAA currency, carried into the training permit application	Amended for grammar only

7.35.3.19	12 to 13	The practicum itself	AMENDED throughout
7.35.3.20 D	14	Students may be present at an administration session. This is the full reach of Section 5(D) of the Act and no further	Not amended
7.35.3.20 E, L	14 to 15	Daily log and adverse event reporting, which the proposed 7.35.3.29 relies on	Not amended
7.35.3.20 H(5)	14	Staffing ratio. Counts a qualified student toward mandatory session staffing	AMENDED
7.35.3.21 A	15	Department assessment authority over records and premises	Not amended
7.35.3.22	15	Prohibitions. Reaches "the qualified patient or certificant", which as published does not include a student	Not amended. Flagged
7.35.3.27	16 to 19	Discipline and appeal, which the proposed training permit denial appeal runs through	Not amended

Addendum B Proposed new provisions

Ten provisions in this draft do not exist in the rule as published. Each is listed with what it does, what it depends on, and whether it can be dropped without breaking anything else.

Proposed provision	What it does	Depends on	If dropped
7.35.3.14 D	Authorizes a training permittee to possess and administer under direct on-site supervision	7.35.3.19 H	The practicum stays unlawful. This and 7.35.3.19 H stand or fall together
7.35.3.18 H	States the 84-hour module total in one place, with a didactic floor of 79 inside it	7.35.3.18 A, C, D, E	Hour figures survive module by module; no total is stated anywhere
7.35.3.18 I	90-day deadline for the department to publish the New Mexico module, and relief for applicants meanwhile	7.35.3.18 A	Every certification pathway stays gated on a module with no delivery date
7.35.3.19 D	Staged practicum sequence, as minimums rather than blocks	7.35.3.19 H, 7.35.3.29	Practicum hours and patient minimums survive; the risk gradient is lost
7.35.3.19 F	Registers practicum supervisors and requires the department to publish a list	7.35.3.19 E	Severable. 7.35.3.19 E can stand with vetting left to the department
7.35.3.19 H	Creates the training permit	7.35.3.14 D	The practicum stays unlawful. See 7.35.3.14 D
7.35.3.19 I	20 consultation hours with two presented cases and a departmental evaluation form	7.35.3.17 A for the credit	7.35.3.17 A survives at 10 hours with no requirement to have seen a client
7.35.3.19 J	End-of-life checkpoint before unsupervised end-of-life practice	7.35.3.19 I	Severable. No end-of-life competency gate remains
7.35.3.20 M	Creates the designation that 7.35.3.14 C requires	7.35.3.14 C	7.35.3.14 C keeps pointing at a registration that does not exist
7.35.3.29	Practicum with participants who are not qualified patients	Statutory change	Severable. 7.35.3.19 D(1) falls to its second limb and stage one becomes observation

Addendum C Why the practitioner practicum is drafted at 90

7.35.3.19 C as published requires "an additional minimum of 20 hours" of supervision without saying what the 20 hours are additional to. That single ambiguity is the only reason this number is not simply the 72 in the July 17 recommendation. The two readings, and what each makes the published requirement:

Reading of the published 7.35.3.19 C	Published practitioner practicum	Published practitioner program total
Reading 1. The 20 hours are inside the 120. 100 for a facilitator plus 20 gives the 120 stated in Subsection A. This is the natural reading and the one this draft adopts and states expressly	120	170
Reading 2. The 20 hours are on top of the 120, which is what the word "additional" says on its face	140	190

The proposal must exceed the published requirement on both readings, because the draft cannot settle what the published text means, only what the amended text will mean. With the module fixed at 84 and consultation at 20, the practitioner program total is 104 plus the practicum:

Practitioner practicum	Program total	Against reading 1 (170)	Against reading 2 (190)
72, as recommended July 17	176	clears by 6	short by 14
80	184	clears by 14	short by 6
86	190	clears by 20	ties, does not clear
90, as drafted	194	clears by 24	clears by 4

The facilitator side is never at risk. The published facilitator total is 150 on both readings and the module alone rises by 44, so any practicum at or above 36 hours clears it. The decision is only about the practitioner number, and only about whether it matters to be safe against reading 2.

Version history

Version	Date	What changed
v1	July 25, 2026	First side-by-side draft. 84 read as a didactic total. Consultation at 30. Practicum step 1 with well participants not drafted.
v2	July 25, 2026	84 restated as a module total inclusive of the 5 simulated patient hours. Practicum entry gate changed from a fraction to a flat 40 didactic hours. Step 1 drafted as proposed new section 7.35.3.29.
v3	July 25, 2026	Consultation set to 20. Medical Psilocybin Act read and applied. 7.35.2 NMAC read and applied. Post-traumatic stress disorder added as a required content area. Addenda A, B and C added. First versioned issue.

Sources. Published rule: *docs/documents/rules-draft-2026-07-23-published.pdf*, 19 pages, sections 7.35.3.1 through 7.35.3.28. 7.35.3.14 is at page 9, 7.35.3.18 at pages 11 and 12, 7.35.3.19 at pages 12 and 13, 7.35.3.20 at pages 13 to 15. Recommendations: Dr. Anne Metz, *Recommendations on Education and Training Requirements for Facilitators and Licensed Providers*, July 17, 2026, six pages, with the one-page summary and the six-slide committee deck of the same date. July 17, 2026 transcripts, morning Advisory Board and afternoon Training and Education Committee, both labeled "UNOFFICIAL AUTO-GENERATED TRANSCRIPT. NO SPEAKER ATTRIBUTION."

Reasoning and citations for every change in this document are in the repository at *amendments/metz-crosswalk.md*, *amendments/7.35.3.18-19-redline.md*, and *amendments/blocking-defects.md*.

Addenda. A, the practicum dependency map. B, the proposed new provisions and what happens if each is dropped. C, the arithmetic behind the practitioner practicum figure.

Status. Internal drafting work. Not a filing, not submitted to the Department of Health, and not promulgated rule text.